

**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY,
FLORIDA**

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**NOTICE OF FILING RENEWED DEMAND FOR INSPECTION AND
ELECTRONIC DELIVERY OF CORPORATE RECORDS**

Defendant, Marc Moszkowski, appearing pro se, hereby gives notice of filing the following **Renewed Demand for Inspection and Electronic Delivery of Corporate Records** pursuant to Section 607.1602, Florida Statutes.

This filing preserves and reiterates Defendant's statutory rights as the largest shareholder and a director of *DeepGulf, Inc.*, as acknowledged in Plaintiffs' own sworn filings. The demand seeks immediate electronic access to specified corporate records, following multiple prior refusals and

given Defendant's documented medical incapacity to travel for in-person inspection.

The attached demand also notes that limited records obtained in July 2019—only under threat of subpoena—contained serious discrepancies and apparent fabrications, underscoring the necessity of complete and accurate disclosure.

Respectfully submitted on this 6th day of August, 2025.

Marc Moszkowski, Pro Se
Email: m.moszkowski@deepgulf.net
Le Verdos
83300 Châteaudouble, France



CERTIFICATE OF SERVICE

I hereby certify that, on this 6th day of August, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.



**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY,
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Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

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**DEFENDANT'S RENEWED DEMAND FOR INSPECTION OF
CORPORATE BOOKS AND RECORDS**

Defendant, Marc Moszkowski, appearing pro se, pursuant to **Section 607.1602, Florida Statutes**, and his continuing status as the largest shareholder and a director of *DeepGulf, Inc.*, as acknowledged in Plaintiffs' own sworn filings in this case, hereby demands **immediate electronic access** to the corporate records listed below.

Defendant previously obtained a limited set of corporate records in July 2019 — and only under threat of subpoena. After extensive and time-consuming analysis, those records, once analyzed, revealed serious discrepancies and apparent fabrications, underscoring the need for full and

accurate access to the corporation's books. Since that time, every subsequent request for inspection has been refused.

Defendant holds nearly half of all shares in *DeepGulf, Inc.* and remains an extant director — a fact confirmed under oath by Rustin Howard in his own affidavit and again in Plaintiffs' attorney's filings. By withholding these records, Plaintiffs are preventing Defendant from carrying out his statutory and fiduciary duties as a director and shareholder, while exposing him to potential liability without the means to exercise informed oversight.

Defendant has been denied access to these records on multiple occasions. On April 21, 2025, Defendant filed a **Formal Demand for Inspection and Electronic Delivery of Corporate Records**, which remains wholly unsatisfied.

Given Defendant's documented and Court-acknowledged destitution and medical incapacity to travel, in-person inspection at the corporation's principal office is impossible and would render the statutory right to "inspect and copy" meaningless in Defendant's case. Electronic delivery is the only means by which the statutory right can be made effective. This renewed demand is therefore submitted to reiterate and enforce Defendant's statutory rights under § 607.1602, Fla. Stat., to require production in an

electronic format that provides meaningful access, and to ensure a complete record of the corporation's continuing refusal to comply.

Pursuant to § 607.1604, Fla. Stat., if the corporation does not permit inspection and copying of the requested records in a form and manner reasonably calculated to enable Defendant to exercise his statutory rights under the circumstances of this case, including by providing electronic copies in light of Defendant's documented and Court-acknowledged inability to travel, Defendant will be entitled to apply to the Court for an order compelling such inspection, together with costs and reasonable attorneys' fees.

Florida courts have, in other contexts, required remote or electronic compliance where in-person access was impractical or impossible, including during the COVID-19 pandemic, in order to preserve statutory and procedural rights. This request is made to preserve the substance of the statutory right, which would otherwise be rendered meaningless if limited to a method of access Defendant is physically unable to use.

Defendant notes that in 2020, in related federal litigation, Plaintiffs opposed remote participation at a time when a Presidential Order barred all travel between Europe and the United States, even demanding that Defendant

prove the existence of the ban. As a result, Defendant was unable to attend and present critical evidence in support of his counterclaim. The same pattern of obstruction should not be permitted to frustrate statutory rights in this matter.

1. **All financial statements** for fiscal years 2004 through 2025, including but not limited to balance sheets, income statements, cash flow statements, and supporting schedules;
2. **All general ledgers and bank account records** (including statements, deposit records, and cancelled checks) for the same period;
3. **All minutes of Board of Directors meetings** and shareholder meetings;
4. **Any and all Board resolutions** authorizing or approving the institution or continuation of litigation in *DeepGulf, Inc. et al. v. Marc M. Moszkowski*, Case No. 2018 CA 000543;
5. **Any and all agreements, correspondence, or records** reflecting the source(s) of funds used to pay legal fees and costs for the above-referenced litigation from 2016 to present, including any shareholder advances or third-party funding arrangements.

Defendant notes that prior requests for inspection of corporate records since 2019 have all been repeatedly refused without lawful basis. Florida law requires the corporation to produce these records **within five business days** of this demand.

Failure to comply will result in the pursuit of all remedies available under Florida law, including an action to compel inspection under § 607.1604, Fla. Stat., with recovery of costs and attorneys' fees.

Respectfully submitted on this 6th day of August, 2025.

Marc Moszkowski, Pro Se
Email: m.moszkowski@deepgulf.net
Le Verdos
83300 Châteaudouble, France

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.

CERTIFICATE OF SERVICE

I hereby certify that, on this 6th day of August, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Marzowski